

Amendment No. 1 to SB1761

Reeves
Signature of Sponsor

AMEND Senate Bill No. 1761

House Bill No. 1503*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 57-7-102, is amended by deleting "or entity" wherever that language appears in subdivisions (7) and (16), and by deleting subdivision (9) and substituting:

(9) "Supplier" means a person that:

(A) Is located either inside or outside of this state and that sells HDCPs to wholesalers or to suppliers licensed under this chapter for repackaging or for resale, but not for consumption;

(B) Manufactures hemp-derived cannabinoids or HDCPs in this state; or

(C) Contracts for the manufacture of hemp-derived cannabinoids or HDCPs, whether located inside or outside of this state, and that sells finished, packaged HDCPs to wholesalers or to suppliers licensed under this chapter for resale and not for consumption;

SECTION 2. Tennessee Code Annotated, Section 57-7-103(a)(1), is amended by deleting "or entity".

SECTION 3. Tennessee Code Annotated, Section 57-7-106, is amended by deleting "or entity" wherever that language appears in subsection (a) and subdivisions (b)(1) and (f)(1).

SECTION 4. Tennessee Code Annotated, Section 57-7-106(f)(1)(A)(iv), is amended by deleting "the name of the person legally responsible for each applicant's operations," and substituting "each applicant's".

SECTION 5. Tennessee Code Annotated, Section 57-7-106(f)(1)(D), is amended by deleting "With respect to the person legally responsible for the management of the applicant's operations, submit" and substituting "Submit".

SECTION 6. Tennessee Code Annotated, Section 57-7-110(a)(1)(C)(ii), is amended by deleting the subdivision and substituting:

(ii) A conspicuous warning statement having a minimum font size of six-point font concerning the risk of impairment from consumption of the product, keeping the product out of reach of children, and other warning information as required by rule of the commission;

SECTION 7. Tennessee Code Annotated, Section 57-7-110(a)(1)(C)(vi), is amended by deleting the subdivision and substituting:

(vi)

(a) A batch number and a quick response (QR) code that can be scanned to access a website providing the product's batch number, date received, date of testing completion, and method of analysis for the testing report required under § 57-7-107, including information regarding results of the product's full-panel and potency tests conducted pursuant to § 57-7-107(a);

(b) The QR code required by subdivision (a)(1)(C)(vi)(a) may link to a webpage that includes certificates of analysis for multiple products or batch numbers of the supplier. A separate website or QR code is not required for each individual product or batch number; provided, that:

(1) The certificate of analysis for the specific batch is accessible within no more than three (3) navigational steps from the initial webpage accessed through the QR code;

(2) The batch number may be entered into a search function that returns a direct link to that batch's certificate of analysis, or no individual

landing page contains more than one hundred fifty (150) clickable links or options;

(3) The webpage is maintained with current and accurate information for all products and batches offered for sale in this state; and

(4) The required information for each product and batch remains publicly accessible for the longer of twelve (12) months after the product or batch is no longer offered for sale in this state by the supplier or ninety (90) days after the product's stated expiration date;

SECTION 8. Tennessee Code Annotated, Section 57-7-110(a)(2), is amended by deleting the subdivision and substituting:

(2) For HDCP beverage products, the container must utilize a traditional pull-tab, an aluminum can device currently approved for soft drinks and malt beverages, or a screw-top or cork-style cap used for containers of wine and other alcoholic beverage products.

SECTION 9. Tennessee Code Annotated, Section 57-7-113(c), is amended by deleting "or entity".

SECTION 10. Tennessee Code Annotated, Section 57-7-118(1), is amended by adding the following immediately after the existing language in the subdivision:

Notwithstanding this subdivision (1) to the contrary, the department of agriculture shall not issue or renew HDCP supplier and retail licenses after the effective date of this act.

SECTION 11. This act takes effect upon becoming a law, the public welfare requiring it.